

26NWCV00825 26NWCV00825

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-09-22

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#18

DIGITAL VERNON

5, L.P. V. VUTHY DUKE AUEYONG, ET AL.

CASE NO.: 26NWCV00825

HEARING: Tuesday, September 22, 2026, at 9:30 AM

Plaintiff Digital Vernon 5, L.P.'s Motion to Amend Court's Judgment for Possession is GRANTED. The judgment entered on March 27, 2026, is amended to include a monetary award of \$60,370.06, entered jointly and severally against both Defendants.

Moving Party to give notice.

Background

On March 5, 2026, Plaintiff Digital Vernon 5, L.P. ("Plaintiff" or "Digital") filed the instant commercial unlawful detainer action against Defendants Vuthy Duke Aueyong ("Aueyong"), Bulksavers Inc. ("Bulksavers") (collectively, "Defendants") and Does 1 through 10.

On March 27, 2026, default and default judgment were entered against Defendants.

On August 24, 2026, Plaintiff filed the instant Motion to Amend Court's Judgment for Possession ("Motion"). No

opposition has been filed.

Legal Standard

Pursuant to Code of Civil Procedure section 1169:

If, at the time appointed, any defendant served with a summons does not appear and defend, the clerk, upon written application of the plaintiff and proof of the service of summons and complaint, shall enter the default of any defendant so served, and, if requested by the plaintiff, immediately shall enter judgment for restitution of the premises and shall issue a writ of execution thereon. The application for default judgment and the default judgment shall include a place to indicate that the judgment includes tenants, subtenants, if any, named claimants, if any, and any other occupants of the premises. Thereafter, the plaintiff may apply to the court for any other relief demanded in the complaint, including the costs, against the defendant, or defendants, or against one or more of the defendants.

Section 1174, subdivision (b) requires assessment of damages occasioned by the unlawful detainer and determination of rent due where the action is based on nonpayment of rent.

Motion to Amend Judgment

Plaintiff moves to amend the judgment granting Plaintiff possession against Defendants Aueyong and Bulksavers on March 27, 2026, to add a monetary award of \$60,370.06.

Plaintiff invokes Code of Civil Procedure sections 1169, 1174, 1032, 1033.5, and 1034.5, Rules of Court 3.1112 and 3.1113, applicable local rules, the parties' written lease agreement, and the Court's inherent and statutory authority to award relief demanded in the complaint following a default judgment for possession in an unlawful detainer action.

Plaintiff seeks to add to the judgment: (1) past due rent and late charges totaling \$38,971.80; (2) holdover damages of \$14,930.54; (3) prejudgment interest of \$2,855.12 through the hearing date; and (4) recoverable costs and attorneys' fees totaling \$7,952.60; less a \$4,340 security deposit; for a net \$60,370.06, to be entered against both Defendants, jointly and severally.

The motion asserts that Defendants are not entitled to notice after default; default was entered on March 27, 2026 . The record supports proceeding without additional notice.

1.

Past Due Rent and Late Charges

The Rent Collection Report shows missed base rent of \$35,428.96 for August 2025 through February 2026 at \$5,061.28 per month. Lease §13.4 imposes a one-time 10% late charge if rent is not received within five days; § 4.1 defines "Rent" to include all monetary obligations other than the security deposit; late charges total \$3,542.84. The record supports \$38,971.80.

2.

Holdover Damages

Defendants surrendered possession on April 27, 2026, after the notice to pay rent or quit expired on February 26, 2026, resulting in 59 days of holdover from February 27 to April 27, 2026. Lease § 26 sets holdover rent at 150% of the prior base rent; with base rent of \$5,061.28, the daily holdover rate is \$253.06, yielding \$14,930.54 for 59 days. This amount is substantiated.

3.

Prejudgment Interest

Lease §13.5 provides 10% per annum interest on monetary payments (other than late charges) beginning the 31st day after due; Plaintiff's spreadsheet calculates \$2,855.12 through the September 22, 2026, hearing date. The showing is adequate as to method and amount through the stated date.

4.

Costs and Attorneys' Fees

Plaintiff seeks

\$7,952.60 consisting of \$278.10 in costs (filing and reservation fees) and \$7,674.60 in attorneys' fees, supported by invoices and a declaration addressing work performed, rates, and reasonableness. Lease §31 contains a prevailing-party fee

clause providing for reasonable fees fully reimbursing fees reasonably incurred. The documentation sufficiently supports the requested amounts.

5.

Security Deposit Offset

The tenant estoppel identifies a \$4,340 security deposit, which Plaintiff credits against the total recovery.

6.

Total Amount

The requested amended judgment components net to \$60,370.06 and Plaintiff asks that it be entered jointly and severally against both defendants. The amounts are supported by sworn declarations and exhibits.

Plaintiff's Motion is GRANTED.

Conclusion

Plaintiff Digital Vernon 5, L.P.'s Motion to Amend Court's Judgment for Possession is GRANTED. The judgment entered on March 27, 2026, is amended to include a monetary award of \$60,370.06, entered jointly and severally against both Defendants.